

Analysis

The parties entered into a CCP 664.6 agreement on 8/1/24 where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for judgment to be entered in the amount of \$7,386.40, plus costs, less any credits for payments received.

The Defendant made payments of \$4,000.00.

The Stipulated Agreement was filed 11/12/25.

The Motion is unopposed. There is proof of mail service to an address at Gold Ct, in El Sobrante. Though Defendant never filed an Answer in this matter, the Complaint does list the same address as the one used for service of this Motion; and, the Defendant did enter into an agreement in the instant matter. Thus, the Court finds that the Defendant was on notice of the cause of action in the instant matter, and that mail service of this Motion is sufficient.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$1,927.11.

Plaintiff to file order on Motion, as well as submit Judgment.

Should any party contest the above tentative ruling the hearing will be conducted on February 17th at 9:00 a.m.

4. 9:00 AM CASE NUMBER: L24-07498

CASE NAME: CAPITAL ONE, N.A. VS. AUSTIN WILLIAMS

***HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT**

FILED BY: CAPITAL ONE, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant that was the same as that listed in the Complaint. Though Defendant never filed an Answer, he did enter into a Stipulation

with Plaintiff on this very matter, showing, by a preponderance of the evidence, that he was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed on the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement, filed on 11/1/24, where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$6,299,68, plus costs, less any credits for payments received.

The Defendant made payments of \$1,848.00.

Costs are \$583.61. A memo on costs was filed 11/20/25.

The Stipulated Agreement was filed 11/1/24.

A dismissal was entered on 12/10/24.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$5,035.26.

Plaintiff to file order on Motion, as well as submit Judgment.

Should any party contest the above tentative ruling the hearing will be conducted on February 17th at 9:00 a.m.

5. 9:00 AM CASE NUMBER: L24-08569
CASE NAME: WELLS FARGO BANK, N.A. VS. ANA GUANZON
HEARING ON SUMMARY MOTION MSJ BY WELLS FARGO ON 5/19/25 - CONTINUED ON 10/7/25
FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Summary Judgment (the "MSJ"), along with a Declaration and a Separate Statement of Undisputed Material Facts. Defendant filed papers in opposition, including an opposition to the Separate Statement, a Declaration, and objections to the Declaration filed by Plaintiff.

Analysis

The procedure by which a party may seek pretrial entry of judgment on the ground that there is no dispute of material fact is summary judgment or, when the request is for a dispositive ruling on one of multiple claims within an action, summary adjudication. Code Civ. Proc. § 437c; Rule 3.1350 of the California Rules of Court (CRC); see *Weiss v. People ex*